Ajit Pandey Others vs State Nct Of Delhi Another on 24 May, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ CRL.M.C. 2965/2023 & CRL. M. A. 35212/20
AJIT PANDEY OTHERS

Through: Ms. Chitra Gosw

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STATE NCT OF DELHI ANOTHER

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HON'BLE MR. JUSTICE MANOJ KUMAR OHRI
ORDER

% 24.05.2024

1. The present petition has been filed under Section 482 Cr.P.C. seeking quashing of FIR No.84/2021 registered for the offences punishable under Sections 420/34 IPC at P.S. Govindpuri on the ground that the parties have amicably settled their disputes.

2. The allegations in the present FIR involve fraud and cheating of funds on the pretext of providing consultancy.

3. Learned counsel for the petitioners submits that during the pendency of the investigation, Section 174-A IPC has been added only against Neeraj @Munni w/o Santosh Pandey. In regards to the said proceedings, an application for cancellation of NBWs was moved by petitioner No.3 and after hearing of the same, the Trial Court had stayed the proceedings u/s 82 and 83 Cr.P.C qua her on 19.01.2023. An anticipatory bail application was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 07/06/2024 at 21:13:03 also moved where interim protection were granted to petitioner no.3 till 21.03.2023. It is further submitted that during the pendency of the above proceedings, a settlement was arrived at between the parties and it is prayed that in these circumstances, the proceedings under 174A IPC be quashed.

He further submits that Neeraj @Munni was not even named in the FIR and even the chargesheet has not been filed against her. Learned APP for the State on instructions from the IO confirms that so far as the Section 174-A IPC is concerned, the same is added only qua Neeraj @ Munni. The complainant is represented by his SPA holder Sh. Narayan Prasad Sharma.

4. Learned counsel for the petitioner reiterates that the parties have reached an amicable settlement vide Settlement Agreement dated 15.09.2022. In terms of the settlement, Rs.6.50 lacs is remaining to be paid which will be paid within three weeks.

5. Learned counsel for the complainant submits that he has no objection if the present FIR and consequent proceedings are quashed subject to receiving the aforesaid amount.

6. Learned counsel for the petitioners submits that no other proceedings are pending between the parties.

7. The parties shall remain bound by the statements made in Court today.

8. In Parbatbhai Aahir and Others v. State of Gujarat and Another reported as (2017) 9 SCC 641, it has been held as under:-

> "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions:

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16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing in so far as the exercise of the inherent power to quash is concerned; 16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute;

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and..."

9. Similarly, in State of Madhya Pradesh v. Laxmi Narayan and Others reported as (2019) 5 SCC 403, it has been held as under:-

> "15. Considering the law on the point and the other decisions of this Court on the point, referred to hereinabove, it is observed and held as under:

> 15.1. That the power conferred Under Section 482 of the Code to quash the criminal proceedings for the non-compoundable offences Under Section 320 of the Code can be exercised having overwhelmingly and predominantly the civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes and when the parties have resolved the entire dispute amongst themselves;"

10. In view of the above facts and since no useful purpose will be served in continuance of the present criminal proceedings, it is directed that the aforesaid FIR and the consequent proceedings arising therefrom are hereby quashed subject to payment of the remaining settlement amount and subject to payment of cost of Rs.25,000/- to be deposited with the Delhi State Legal Services Authority (A/c No. 18580110053263, UCO Bank, Branch : Rouse This is a digitally signed order.

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11. Proof evidencing receipt of deposit shall be filed with the I.O. as well as in Court failing which, the Registry shall list the matter in the Court.

12. A copy of this order be communicated to the Member Secretary, Delhi State Legal Services Authority for intimation.

13. With the above directions, the petition is disposed of.

MANOJ KUMAR OHRI, J MAY 24, 2024/ssc This is a digitally signed order.

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